REPORT OF THE PARLIAMENTARY STANDING COMMITTEE ON HUMAN RESOURCES AND COMMUNITY DEVELOPMENT ON THE MOTION ON FAKE QUALIFICATIONS WITHIN THE PUBLIC SECTOR

Acronyms

HPCN	-	*Health Professional Council of Namibia*
M&E	-	*Monitoring and Evaluation*
MHETI	-	*Ministry of Higher Education, Training and Innovation*
NAMPOL	-	*Namibian Police Force*
NCHE	-	*National Council of Higher Education*
NGOs	-	*Non-Governmental Organizations*
NQA	-	*Namibia Qualification Authority*
NQF	-	*National Qualification Framework*
NTA	-	*Namibia Training Authority*
O/M/As	-	Offices, Ministries, Agencies
PSC	-	*Public Service Commission*
RCs	-	*Regional Councils*
SOEs	-	*State Owned Enterprises*

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1 INTRODUCTION

The Motion on Fake Qualifications in the Public Sector was tabled in the National Assembly in 2021 and subsequently referred to the Parliamentary Standing Committee on Human Resources and Community Development for further scrutiny.

The main objective of the Motion was to investigate the detrimental effects the false qualifications has on the economy specifically on the job market in the public sector.

It is acknowledged all over the world that persons falsify qualifications in order to secure employment they do not qualify for or to increase their chances of being promoted to high positions at the disadvantage of those who genuinely qualify.

Primarily, the motion seeks that;

a) The Public Service across the board be requested to submit the qualifications for verification and certification, including those of the Executives;
b) The Public Service Commission institute a qualification audit across the system and undertakes robust research to find out fake qualifications and institutions;
c) The Public Service Commission identifies and criminally charge all individuals and institutions who are found to have false qualifications, and
d) The Public Service Commission ensure that positions are with qualified people who can positively contribute to the growth of the economy and are now roaming the streets.

2 MANDATE OF THE COMMITTEE

The Committee's mandate, powers and functions are derived from the Constitution **(Article 59)** and the Standing Rules and Orders and Internal Arrangements (Rule 74) of the National Assembly.

The Committee has the duty to –

(a) consider any matter it deems relevant with regard to the Offices, Ministries, Agencies, and all State-Owned Enterprises and Parastatals responsible for the following category of affairs which shall, inter alia, include:

- Higher Education, Training and Innovation;
- Education, Arts and Culture;
- Urban and Rural Development and Housing;
- Sport, Youth and National Service;
- Labour Industrial Relations and Employment Creation;

  and may for that purpose consult and liaise with the relevant Institutions;

(b) liaise with non-governmental organisations (NGOs), Agencies and Institutions to enquire and monitor programmes that are aimed at uplifting the social and economic conditions of communities;

(c) monitor and enquire into all matters related to human resource development;

(d) monitor and enquire into all matters related to the development of both rural and urban communities;

(e) monitor and enquire into all matters related to the needs of the youth;

(f) promote harmonious industrial relations in Namibia;

(g) review and advise the National Assembly on the housing needs of the people;

(h) enquire into and monitor international protocols, conventions and agreements that may affect the country's human resources and community development and where necessary make recommendations to the National Assembly; and

(i) perform such other functions, tasks, and duties relating to Parliamentary supervision of such Offices, Ministries, Agencies (OMAs) or State Owned Enterprises (SOEs) and Parastatals as may be prescribed by the National Assembly or in terms of an Act of Parliament.

3 METHODOLOGY

The Committee held consultative hearings with the following key stakeholders, among others:

3.1 The Public Service Commission (PSC);

3.2 The Namibia Qualifications Authority (NQA);

3.3 The Namibian Police Force (NAMPOL);

3.4 The Ministry Of Higher Education, Training and Innovation (MHETI)

4 PURPOSE OF THE REPORT

The purpose of this report is to present the findings and recommendations that emanated from the consultative process with the relevant stakeholders and in accordance with the Motion.

5 THE PUBLIC SERVICE COMMISSION (PSC)

The Public Service Commission was established in terms of Article 112 of the Namibian Constitution as an independent and impartial body. The Public Service Act, 1995 (Act No. 13 of 1995) Section 5 (1), stipulates that the appointment into the Public Service is made by the Prime Minister on the recommendations and advice of the Public Service Commission, and the Regional Councils in terms of the Regional Council Act, 1992 (Act No. 22 of 1992).

According to the Public Service Commission, it has only the power to recommend and advice, while appointment approvals are being done by the Prime Minister and the Regional Councils. PSC powers and functions can be further delegated to Executive Directors and Regional Councils for appointments of staff members below management cadres.

The PSC said, the only requirements when applying for the job in the public service is to attach certified copies of the qualifications with original certifying date stamp by the Namibian Police and evaluated by Namibia Qualification Authority especially in cases of foreign acquired qualifications. The Human Resource Officers in Offices, Ministries and Agencies also play a role to further verify the qualifications with NQA.

If a candidate is recommended for employment in the public service and later it was detected that a qualification was forged or falsified, the concerned Office /Ministry/Agency or Regional Council can request termination of the employment contract after the staff member has been charged with misconduct.

The PSC submitted that there is a Monitoring and Evaluation (M&E) Division in place but no Audit Committee exists within the public service. In addition, there are no staff members with specialized skills and no specific tools to detect fake qualifications, and PSC is trying to extend this function to cooperate with NQA who have the mandate to authenticate qualifications.

The PSC considers any forgery of records as a major offence as well as a criminal act whereby the offender can be charged with misconduct and an administrative action is taken immediately. In 2013, the PSC had only one (1) case and the staff member was charged with falsification of qualification and subsequently discharged.

5.1 Current challenges being experienced

5.1.1 The Public Service Act of 1992 and Regional Councils Act of 1997 are not harmonized;

5.1.2 PSC has only advisory and recommending powers and it has no power to act and make executive decisions;

5.1.3 Lack of collaboration between responsible institutions and other relevant stakeholders, and

5.1.4 Non-compliance to public service rules and acts.

6 THE NAMIBIA QUALIFICATION AUTHORITY (NQA)

The NQA was established by Act No. 29 of 1996 and has its mandate to administer the National Qualification Framework (NQF) and evaluate qualifications attained from institutions of learning outside Namibia with the aim to determine compatibility level on the NQF, which sets the national standards. If the qualification does not meet national standard requirements it is regarded as null. To date, the NQA has accredited sixty four (64) Namibian institutions and their programmes countrywide.

In 2014, the NQA has recorded hundred (100) cases of people with qualifications mostly from Zimbabwe linked institutions. Of those qualifications which were evaluated, ninety-six (96) were found to be misrepresented, fake and fraudulent.

In the span of fifteen (15) years up to 2022, about one hundred and eighty three (183) qualifications were found to be fraudulent, which on average translates to twelve (12) cases per year.

Because the current NQA Act does not provide the NQA with powers to investigate, it usually reports the matters to the Namibian Police, the Police opens a case docket and the Prosecutor General decides to prosecute or not, after investigations are completed. NQA works closely with the Police and the Anti-Corruption Commission (ACC), through a standing agreement. Unfortunately, almost all of the people who were charged with fraudulent qualifications, cases were withdrawn by the state.

NQA believes that sellers of fake qualifications are driven by monetary gain, while buyers are involved in the scheme for different reasons such as mobility, employment, promotion, migration and further studies. Buyers normally buys fake qualifications from fake institutions.

Furthermore, NQA has indicated that half of the Namibian employees do not have their qualifications evaluated, and this may have an impact on the socio-economic affairs of the country. Moreover, forging of qualifications have the potential to damage client's relationships, and taking up of positions of those who genuinely paid and studied.

The NQA said that it has implemented best practices in terms of the current enabling laws and benchmarked with the South African and Mauritius systems and they have shared data on a regular basis. The three countries were also chosen as case studies on qualifications framework in Southern Africa.

NQA does provide community awareness through various platforms such as media and its website to curb these fraudulent activities, however, they do not have offices in the regions due to economics of scale and the cost to maintain such offices.

6.1 Current challenges being experienced

Although there is a pilot project to strengthen the system;

6.1.1 Fraudulent qualifications damage the brand and reputation of the Namibian qualifications system;

6.1.2 There are weaknesses on the current system on how to deal with offenders, hence, the need to get a proper system to safeguard the trust of the citizens, and

6.1.3 The systems does not talk to each other, in terms of cooperating and effectively bringing all stakeholders together.

7 THE NAMIBIAN POLICE FORCE (NAMPOL)

The Namibian Police Force was established in terms of Article 118 of the Namibian Constitution with prescribed powers and functions set out in the Police Act, 1999 (Act No.19 of 1990) which inter alia includes:

i. The Preservation of Internal Security of Namibia;

ii. The Maintenance of Law and Order;

iii. The Investigation of Offences or Alleged Offences;

iv. The Prevention of Crime, And

v. The Protection of Life and Property

The certification of documents is governed and guided by the Justice of the Peace and Commissioners of Oath Act, 1963 (Act No.16 of 1963). Commissioners of Oath are designated by the Minister of Justice in terms of Section 5 and they are given their powers in terms of Sections 6 and 7 of the said Act. The Act also lists a number of offices whose holders are ex-officio Commissioners of Oath.

The role of the Police or any other Commissioner of Oath when it comes to the certifying of qualifications or documents is to ensure that the copy of a document to be certified is a true copy of the original document. In other words, the Police have to inspect the documents, have original documents for reference check and satisfy themselves that it is indeed a true copy from the original document before an endorsement is made. This is done to eliminate the occurrence of offences such as fraud, forgery, and uttering.

However, NAMPOL has indicated that by law they are not charged with the responsibility or duty to authenticate primary documents, but merely to certify that the copy brought before them is indeed a copy of the original document.

In terms of crime statistics related to forgery and uttering, the Police has recorded thirty two (32) cases in 2022, three hundred and seven (307) in 2021, two hundred and thirty eight (238) in 2020, and two hundred and eighty seven (287) in 2019. These statistics were captured per crime code as per the offences committed that is of forgery and uttering, and were not segregated to indicate what number is for fake qualifications.

Internally, one hundred and seventy six (176) persons who wanted to become Police Officers were found to have presented fake qualifications of forged documents to NAMPOL between the period 2018 to 2020 and they were all arrested and charged with common law offences of forgery and uttering as well as the contravention of the Public Service Act, 1995 (Act No. 13 of 1995) and the Education Act, 2001 (Act No. 16 of 2001). They were eventually discharged from the Police force.

7.1 Measures being taken when certifying copies of original documents

The police indicated that certification does not amount to authentication, but documents are taken on face value and inspected to the satisfaction of the officer certifying the document that is placed before him or her by checking some security features such as water marks, authenticity of the signature or serial numbers that would normally appear when you make a copy.

8 MINISTRY OF HIGHER EDUCATION, TECHNOLOGY AND INNOVATION

The Education Act, 2001 (Act No. 16 of 2001) made provisions for registration of institutions that may want to operate in the higher education space. Firstly, for the establishment of any higher education institution by any person provided that the institution or person will have the necessary resources to ensure that the institution they wish to establish is maintained and operated. Secondly, that the institution should be at comparable quality level with any other public institutions in the country.

The above gave rise to the registration of higher education institutions in the following ways;

i. By the National Council of Higher Education (NCHE) which deals with the registration of higher education institutions such as universities and colleges;

ii. By the Namibia Training Authority (NTA) which deals with the registration of technical vocational education and training institutions;

iii. The NCHE and NQA awards accreditation based on the programs being offered or to be introduced and ensures that the institution that wish to offer the programs have the necessary capacity and resources (facilities, lecturers, books or study materials, registered students as well as financial resources) to deliver the programs, and

iv. The Health Professional Council of Namibia (HPCN) also have a role to play pertaining to registration or offering of biological courses. The HPCN act as a quality assurance body and recognize qualifications in that space.

Currently, there are thirteen (13) higher education institutions registered with Namibia Council of Higher Education. There were cases of seven (7) institutions that were not registered with NCHE especially in the health sector. The unregistered institutions are usually given time to comply with legal requirements and to ensure appropriate registration is done with NCHE. One (1) institution Christian University was closed down.

The database for local and foreign registered institutions exists with NCHE and NQA where the general public is requested to verify whether these institutions are actually registered before they enroll for programs. Advocacy campaigns and awareness are also being rolled out by these institutions, including booklets and media campaigns.

From 2004 to 2022, one hundred and eighty three (183) cases of fake qualifications were recorded.

Below, is the list of cases picked up by the Ministry through NQA although they could not provide statistics of how many cases were successfully concluded, outstanding or how many were prosecuted; 2022 one (1) case; 2021 three (3) cases; 2020 one (1) case; 2019 two (2) cases; 2018 ten (10) cases; 2017 six (6) cases; 2016 one (1) case; 2015 four (4) cases; 2014 (ninety six (96) cases; 2013 thirty eight (38) cases; 2012 nine (9) cases; 2011 nine (9) cases; 2010 one (1) case; 2005 one (1) case, and 2004 one (1) case.

8.1 Causes of fraudulent or forging of educational qualifications

The ministry stated that many people buy qualifications for advancement purposes such as:

i. For monetary benefit;
ii. To gain employment;
iii. To get promotion in employment, and
iv. Mobility.

The Ministry indicated that there are fake or bogus universities particularly in foreign countries that are also issuing some of these qualifications and when prospective students register with such institutions, they obtain these fake qualifications which will eventually be detected by NQA as a forged qualification.

8.2 Measures in place to detect fraudulent or forged qualifications

The Ministry admitted that at most it is not easy to identify or detect fake or forged qualifications as it involves technological advances. E-learning also made the detection of forged qualifications a big challenge. However, the Ministry carries out institutional visits and re-registration processes of higher educational institutions. This exercise assists in detecting whether there has been changes in terms of the approved programs and other legal requirements.

Since falsifying or forging of educational qualifications is regarded as a criminal offence, the Ministry works closely with law enforcement agencies like the police and forensic laboratory to deal with these cases. Due to the unemployment situation in the country the Ministry has requested the NCHE to start or assist with the audit of various qualifications.

8.3 Current challenges being encountered

i. Some institutions start operating without registering and end up closing down because they could not cope with the legal requirements;
ii. Some institutions ends up changing their operations against what was approved;
iii. Franchise problems whereby certain institutions buy programmes but at the end they are unable to register for accreditation and starts offering unworthy certificates;
iv. Although awareness is being raised, people continue to register with bogus institutions and suffering from financial loss;
v. Overlapping functions between NCHE, NQA and NTA need to be harmonized;

vi. Students who obtain external qualifications finds it difficult to apply for accreditation process as sometimes they don't obtain their qualifications on time, and

vii. Incidences of people writing and submitting thesis or dissertation work on behalf of other people, and it is difficult to detect because persons submit work as per requirements.

9 FINDINGS

All consulted stakeholders have confirmed to the possibility of rampant fake or forged qualifications in the public sector;

9.1 No Audit Committee on qualifications within the public sector;

9.2 There is a Monitoring and Evaluation (M&E) division within the PSC, but staff members have no specialized skills and there are no specific tools, equipment or measures in place to detect fake or forged qualifications before a person is recruited in the public sector;

9.3 Evaluation and authentication of qualifications is not compulsory for job specifications;

9.4 NQA has no investigative power;

9.5 There are serious gaps in the laws guiding the authentication and detection of forged qualifications, and the functions of various stakeholders are not harmonized;

9.6 Current penalties do not deter culprits from buying or possessing fake qualifications;

9.7 Many people finds it easy to buy qualifications they do not possess mainly for monetary gain, employment or promotion purposes;

9.8 A number of higher learning institutions were operating without registering with NCHE, NQA and NTA, or meeting legal requirements;

9.9 The Police has no power to authenticate primary documents or qualifications, but merely to certify that the copy is indeed from the original document.

10 SPECIFIC RECOMMENDATIONS

10.1 PUBLIC SERVICE COMMISSION

10.1.1 Conduct audit on qualifications for each individual files in the Public Service and Regional Councils;

10.1.2 Put measures in place to authenticate qualifications before a person is offered employment in the public sector.

10.1.3 Enact legislation or develop policies to allow Offices, Ministries and Agencies to perform compulsory verification of qualifications before employment contract is offered;

10.1.4 All original qualifications or documents should be submitted for authentication purposes be employment in the Public Service is offered.

10.2 NAMIBIA QUALIFICATIONS AUTHORITY

1.1.1 Review and strengthen the NQA Act to close the gaps that exists in the current law;

1.1.2 Review the NQA Act to provide for compulsory evaluation and authentication of qualifications;

10.2.1 Review the current policies to provide for hefty penalties and fines, and

10.2.2 Change the NQA Act to provide for the power to investigate.

10.3 THE NAMIBIAN POLICE FORCE

10.3.1 To review the Police Act to provide for the authentication of primary documents, and

1.1.3 To amend or repeal governing legislation to give more powers and duties to the Commissioners of Oath.

10.4 MINISTRY OF HIGHER EDUCATION, TECHNOLOGY AND INNOVATION

10.4.1 To conduct investigation on bogus and non-registered higher education institutions;

10.4.2 Review and strengthen the current legislation of Higher Education, and

10.4.3 Close down bogus institutions or those which are not in good standing.

11 GENERAL RECOMMENDATIONS

11.1 Carry out qualifications audit for people occupying positions in public and private institutions;

11.2 All employees found to have forged and fraudulently submitted qualifications for employment or any other reasons should be banned permanently from applying for government jobs;

11.3 Harmonize the overlapping functions of NHCE, NQA and NTA;

11.4 Engage the directorate of National Examination Assessment to assist with the verifications, and

11.5 The regulatory authorities should establish a database where all the qualifications will be captured and the Police can have access rights to search for authentication features.

12 CONCLUSION

To have a credible public service, the employer has to carry out due diligence to verify all qualifications to establish the authentication of such documents instead of primarily relying on documentation submitted by the prospective employees.

With these findings, it is deduced that fraudulent and forged qualifications have disastrous consequences to the economy and employment in the public sector and this has been devastating for many eligible men and women who could not find jobs in the market. If not tackled with the contempt it deserves, this crime

will further prove detrimental to the governance and efficiency in the public sector.

It is therefore of critical importance that immediate actions are taken by those institutions concerned to safeguard the image, status and employment in the public sector, by ensuring that authentication of qualifications becomes mandatory, deal with bogus and unregistered educational institutions, and charge those who were found to have committed fraud and forgery of qualifications.

SIGNATURES: MEMBERS OF THE COMMITTEE

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